

The Factories Act, 1948

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Section 21: Fencing of machinery.

(1) In every factory the following, namely:

every moving part of a prime mover and every flywheel connected to a prime mover, whether the prime mover or flywheel is in the engine house or not;

the headrace and tailrace of every water-wheel and water turbine;

any part of a stock-bar which projects beyond the head stock of a lathe; and

unless they are in such position or of such construction as to be safe to every person employed in the factory as they would be if they were securely fenced, the following, namely:

every part of an electric generator, a motor or rotary converter;

every part of transmission machinery; and

every dangerous part of any other machinery;

shall be securely fenced by safeguards of substantial construction which shall be constantly maintained and kept in position while the parts of machinery they are fencing are in motion or in use.

Section 41: Power to make rules to supplement this Chapter.

The State Government may make rules requiring the provision in any factory or in any class or description of factories of such further devices and measures for securing the safety of persons employed therein as it may deem necessary.